

AUG 1 1997



U.S. Department
of Transportation

Research and
Special Programs
Administration

400 Seventh Street, S.W.
Washington, D.C. 20590

DOT-E 11800

EXPIRATION DATE: June 30, 1999

(FOR RENEWAL, SEE 49 CFR 107.109)

1. GRANTEE: General Fire Extinguisher Corp.
Northbrook, IL

2. PURPOSE AND LIMITATIONS:

This exemption authorizes the manufacture, mark and sale of non-DOT specification fire extinguisher cylinders conforming with 49 CFR §173.309, except that the cylinders exceed 900 ml capacity and contain nonflammable liquefied compressed gas. This exemption provides no relief from any regulation other than as specifically stated herein.

The safety analyses performed in development of this exemption only considered the hazards and risks associated with transportation in commerce. The safety analyses did not consider the hazards and risks associated with consumer use, use as a component of a transport vehicle or other device, or other uses not associated with transportation in commerce.

3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR §173.309(a)(3)(i), in that fire extinguisher cylinders contain a liquefied compressed gas and exceed 900 ml (55 cubic inches).
5. BASIS: This exemption is based on the application of General Fire Extinguisher Corporation, Inc. dated November 11, 1996 and supplemental information dated July 18, and July 25, 1997, submitted in accordance with 49 CFR 107.105 and the public proceeding thereon.

Pending Renewal.
Application Date 5/11/99

Continuation of DOT-E 11800

Page 2

6. HAZARDOUS MATERIALS (49 CFR 172.101):

Hazardous materials description -- proper shipping name	Hazard Class/ Division	Identi- fication Number	Packing Group
Mixture of Chlorodifluorobromomethane (Halon 1211), liquefied compressed gas	2.2	UN1974	NA

7. PACKAGING(S) and SAFETY CONTROL MEASURES:

a. PACKAGING - Packagings prescribed are non-DOT specification cylinders made in accordance with General Fire Extinguisher Corporation, Inc.'s application, and in compliance with all requirements for fire extinguisher cylinders specified in §173.309, except §173.309(a)(3)(i), which addresses internal volume. Before the first shipment, for each model, General Fire Extinguisher Corporation must provide qualification burst test results required by §173.309(a)(3)(ii).

b. Destructive Testing - One cylinder from each lot must be pressurized to burst in accordance with General Fire Extinguisher Corporation, Inc.'s testing procedures provided in their application, and meet all of the requirements of the 49 CFR §173.309(a)(3)(ii).

(1) In this exemption, a "lot" means a group of cylinders successively produced and having the same:

- (i) size and configuration;
- (ii) specified material of construction;
- (iii) process of manufacture and heat treatment;
- (iv) equipment of manufacture and heat treatment;
- (v) conditions of time, temperature and atmosphere during heat treatment.

AUG 1 1997

Continuation of DOT-E 11800

Page 3

(vi) In no case may the lot size exceed 200 cylinders for cylinders with an internal volume exceeding 18 liters (1,100 cubic inches), 500 cylinders for cylinders with an internal volume exceeding 10 liters (610 cubic inches), and 1000 cylinders with an internal volume exceeding 1 liter (61 cubic inches). A cylinder processed for use in the required destructive testing need not be counted as being one of the lot.

c. Testing - Each cylinder must be hydrostatically tested in accordance with §173.309(a)(3)(iii). Cylinders requalified after having been subjected to the action of fire, must be reported to the Office of Hazardous Materials Exemptions and Approvals (OHMEA) prior to being placed back in service.

8. SPECIAL PROVISIONS:

a. Reports - Prior to the initial shipment of each model cylinder, General Fire Extinguisher Corporation must submit the qualification burst test results report required by §173.309(a)(3)(ii) to OHMEA.

b. Reinspection - Each cylinder with an internal volume exceeding 18 liters (1100 cubic inches) must be reinspected and hydrostatically retested every five years in accordance with 49 CFR 173.34(e), as prescribed for DOT 4BA specification cylinders. Retest dates must be stamped on the cylinder neck. Reheat treatment or repair of rejected cylinders is not authorized.

c. Persons who receive the packages covered by this exemption may reoffer them for transportation provided no modifications or changes are made to the packages, all terms of this exemption are complied with and a current copy of this exemption is maintained at each facility from which such reoffering occurs.

d. Shippers using the packaging covered by this exemption must comply with all provisions of this exemption, and all other applicable requirements contained in 49 CFR Parts 171-180.

e. Each cylinder authorized herein must be marked "DOT-E 11800" as required by 49 CFR 172.301(c).

9. MODES OF TRANSPORTATION AUTHORIZED: Motor vehicle, rail freight, cargo vessel, cargo aircraft, and passenger aircraft only if the cylinder is integrated as part of the aircraft.

10. MODAL REQUIREMENTS: A copy of this exemption must be carried aboard each cargo vessel, or aircraft used to transport packages covered by this exemption. The shipper shall furnish a copy of this exemption to the air carrier before or at the time the shipment is tendered.
11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this exemption and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. Section 5101 et seq.:
- o All terms and conditions prescribed in this exemption and the Hazardous Materials Regulations, Parts 171-180.
 - o Registration required by 49 CFR 107.601 et seq., when applicable.

No person may use or apply this exemption, including display of its number, when the exemption has expired or is otherwise no longer in effect.

12. REPORTING REQUIREMENTS: The carrier is required to report any incident involving loss of packaging contents or packaging failure to the Associate Administrator for Hazardous Materials Safety (AAHMS) as soon as practicable. (49 CFR 171.15 and 171.16 apply to any activity undertaken under the authority of this exemption.) In addition, the holder(s) of this exemption must also inform the AAHMS, in writing, as soon as practicable of any incidents involving the package and shipments made under this exemption.

Issued at Washington, D.C.


Alan I. Roberts
Associate Administrator
for Hazardous Materials Safety

AUG 1 1997

(DATE)

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Research and Special Programs Administration, Department of Transportation, Washington, D.C. 20590.
Attention: DHM-31.

The original of this exemption is on file at the above office. Photo reproductions and legible reductions of this exemption are permitted. Any alteration of this exemption is prohibited.

Dist: FHWA, USCG, FAA, FRA
PO:mt/am